

Narsingh v. State of U.P. and others

Allahabad High Court · Division Bench · 29 May 2024 · 2024:AHC:97902-DB · Writ - C No. 18604 of 2024 · **Writ disposed; representation to be decided under Clause 6.5.**

HEADNOTE

Without expressing any opinion on merits, the Division Bench disposed of a writ seeking quashing of post-disconnection electricity-dues recovery by directing respondent no. 3 to decide the petitioner's representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005; any further demand would abide by that decision.

FACTUAL SUMMARY

The petitioner's electricity supply was permanently disconnected pursuant to an office memorandum dated 28 October 2016. He claimed that the dues had been deposited at disconnection, yet the respondents continued to raise a further demand and that a recovery certificate, if any, had issued. He sought a writ directing decision of his pending representations and quashing of any recovery certificate. Counsel for the Electricity Department submitted that the grievance would be examined under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection after permanent disconnection

HOLDING

Without expressing any opinion on merits, the writ was disposed of with a direction to respondent no. 3 to decide the petitioner's representation, to be filed within two weeks with a true attested copy of the order after hearing him, under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Any further demand of electricity dues would abide by that decision. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER FURTHER ELECTRICITY DUES WERE PAYABLE AFTER PERMANENT DISCONNECTION AND DEPOSIT OF DUES, AND WHETHER ANY RECOVERY CERTIFICATE WAS LIABLE TO BE QUASHED.

¶ 2-4